

January 19, 2007



U.S. Department  
of Transportation

400 Seventh Street, S.W.  
Washington, D.C. 20590

**Pipeline and Hazardous  
Materials Safety Administration**

DOT-SP 12024  
(SEVENTH REVISION)

|                                    |
|------------------------------------|
| EXPIRATION DATE: December 31, 2009 |
|------------------------------------|

(FOR RENEWAL, SEE 49 CFR § 107.109)

1. GRANTEE: Johnson and Johnson Consumer Health Company  
(Former Grantee: Warner-Lambert Company)  
Morris Plains, NJ
2. PURPOSE AND LIMITATION:
  - a. This special permit authorizes the transportation in commerce of certain hazardous materials across a public road, from one part of a plant to another, as essentially not subject to the hazard communication requirements in Part 172. This special permit provides no relief from the Hazardous Materials Regulations (HMR) other than as specifically stated herein.
  - b. The safety analyses performed in development of this special permit only considered the hazards and risks associated with transportation in commerce.
  - c. No party status will be granted to this special permit.
3. REGULATORY SYSTEM AFFECTED: 49 CFR Parts 106, 107 and 171-180.
4. REGULATIONS FROM WHICH EXEMPTED: 49 CFR §§ 172.200, 172.300, and 172.400 in that hazard communication requirements are waived except as specified herein.

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5. BASIS: This special permit is based on the application of Warner-Lambert Company dated January 9, 2006, submitted in accordance with § 107.109 and additional information from Johnson & Johnson Consumer Health Company dated January 2, 2007.
6. HAZARDOUS MATERIALS (49 CFR § 172.101):

| Hazardous materials description<br>-- proper shipping name | Hazard<br>Class/<br>Division | Identi-<br>fication<br>Number | Packing<br>Group |
|------------------------------------------------------------|------------------------------|-------------------------------|------------------|
| n/a                                                        | n/a                          | n/a                           | n/a              |

7. PACKAGING AND SAFETY CONTROL MEASURES:

- a. PACKAGING -Packagings must be in accordance with the requirements of the Hazardous Materials Regulations, as appropriate for non-bulk packagings.
- b. MARKING - No marking required.
- c. LABELING - No labeling required.
- d. SHIPPING PAPERS - No shipping papers required. In lieu of shipping papers, Johnson & Johnson Consumer Health Company will prepare internal tracking documents that identify the general types of hazardous materials being transferred as well as its origin and destinations.
- e. OPERATIONAL CONTROLS -
- (1) Transportation is restricted to transfer between company locations across Tabor Road using the intersection as indicated on Attachment 1 of the Warner- Lambert application on file with the Office of Hazardous Materials Special Permits and Approvals (OHMSPA).
  - (2) Transfers must occur between the hours 6.00 a.m and 6 p.m.
  - (3) Transportation must be done using vehicles owned by Johnson & Johnson Consumer Health Company or its contractors.

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(4) Johnson & Johnson Consumer Health Company's first responder team must be on duty during transport of hazardous materials under terms of this special permit.

(5) Not more than one transport vehicle containing the hazardous material authorized by this special permit maybe operated at any time.

8. SPECIAL PROVISIONS:

a. No Class 1 or 7 materials may be transported under this special permit.

b. The grantee using the packaging covered by this special permit must comply with all provisions of this special permit, and all other applicable requirements contained in 49 CFR Parts 171-180.

9. MODES OF TRANSPORTATION AUTHORIZED: Motor vehicle only.

10. MODAL REQUIREMENTS: None other than as specified in the HMR.

11. COMPLIANCE: Failure by a person to comply with any of the following may result in suspension or revocation of this special permit and penalties prescribed by the Federal hazardous materials transportation law, 49 U.S.C. 5101 et seq:

- o All terms and conditions prescribed in this special permit and the Hazardous Materials Regulations, 49 CFR Parts 171-180.
- o Persons operating under the terms of this special permit must comply with the security plan requirement in Subpart I of Part 172 of the HMR, when applicable.
- o Registration required by § 107.601 et seq., when applicable.

Each "Hazmat employee", as defined in § 171.8, who performs a function subject to this special permit must receive training on the requirements and conditions of this special permit in addition to the training required by §§ 172.700 through 172.704.

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No person may use or apply this special permit, including display of its number, when the special permit has expired or is otherwise no longer in effect.

Under Title VII of the Safe, Accountable, Flexible, Efficient Transportation Equity Act: A Legacy for Users (SAFETEA-LU)- 'The Hazardous Materials Safety and Security Reauthorization Act of 2005' (Pub. L. 109-59), 119 Stat. 1144 (August 10, 2005), amended the Federal hazardous materials transportation law by changing the term 'special permit' to 'special permit' and authorizes a special permit to be granted up to two years for new special permits and up to four years for renewals.

12. REPORTING REQUIREMENTS: Shipments or operations conducted under this special permit are subject to the Hazardous Materials Incident Reporting requirements specified in 49 CFR §§ 171.15 - Immediate notice of certain hazardous materials incidents, and 171.16 - Detailed hazardous materials incident reports. In addition, the grantee(s) of this special permit must notify the Associate Administrator for Hazardous Materials Safety, in writing, of any incident involving a package, shipment or operation conducted under terms of this special permit.

Issued in Washington, D.C.:



for Bob Richard  
Deputy Associate Administrator  
for Hazardous Materials Safety

Address all inquiries to: Associate Administrator for Hazardous Materials Safety, Pipeline and Hazardous Materials Safety Administration, Department of Transportation, Washington, D.C. 20590. Attention: PHH-31.

Copies of this special permit may be obtained by accessing the Hazardous Materials Safety Homepage at [http://hazmat.dot.gov/sp\\_app/special\\_permits/spec\\_perm\\_index.htm](http://hazmat.dot.gov/sp_app/special_permits/spec_perm_index.htm) Photo reproductions and legible reductions of this special permit are permitted. Any alteration of this special permit is prohibited.

PO: sln